

B43A

Para. 160A

Creditor's Bankruptcy Application Checklist

Case number:	HC/B []
Case title:	XXX v YYY
Statutory Demand ("SD") {This section may be left blank if the Claimant is not relying on s 312(a) of the Insolvency, Restructuring and Dissolution Act 2018 in the bankruptcy application}	
Details of the debt:	Amount of debt stated in SD: [] ☐ SD states the actual amount of debt accrued as at the date of the SD ☐ SD contains all other information required under r 64 of the Insolvency, Restructuring and Dissolution (Personal Insolvency) Rules 2020 (" PIR ")
Service of SD	
Details of service:	Date of service: [] Time of service: [] {This field may be left blank if service has been effected by post} Mode of service: []
Affidavit of service of SD	
Exhibits copy of SD:	☐
Originating Application (Creditor's Bankruptcy Application) ("BA")	
Date filed:	Date of filing: [] ☐ BA was filed within 4 months from the date on which the SD was served or deemed served {if the BA is based on non-compliance with an SD} OR ☐ BA was filed within 4 months from the date on which the enforcement was completed {if the BA is based on s 312(b) of the Insolvency, Restructuring and Dissolution Act 2018 (" IRDA ")}
Appointment of trustee of the bankrupt's estate:	☐ Prayer for appointment of Private Trustee(s) in Bankruptcy is included in BA OR ☐ Official Assignee's written consent to act as trustee of the bankrupt's estate has been filed
Service of BA	
Details of service:	Date of service: [] ☐ Date of service of the BA is at least 7 clear days before the date of the hearing of the BA

	Time of service: [] { <i>This field may be left blank if service has been effected by post</i> } Mode of service: [] { <i>Where substituted service is effected, please indicate the Order of Court number and date.</i> }
Affidavit of service of BA	
Date filed:	Date of filing: []
Exhibits:	☐ Exhibits a sealed copy of BA and supporting affidavit, with endorsement as to date/time of service. ☐ Exhibits a sealed copy of the order for substituted service and any evidence of such service { <i>where substituted service is effected</i> }
Supporting Affidavit	
Information in supporting affidavit:	Actual amount of debt accrued as at the date of the BA: [] ☐ All information required under ss 310–311 of the IRDA and rr 70–75 of the PIR is stated in the supporting affidavit OR ☐ The following information required under ss 310–311 of the IRDA and rr 70–75 of the PIR is not stated in the supporting affidavit for the following reasons - { <i>please specify what information is not included and why</i> }
Affidavit of Non-Satisfaction of Debt (“ANS”)	
Information in ANS	Date of latest ANS: [] Amount of debt that remains unsatisfied: []
Appointment of Private Trustee in Bankruptcy	
Consent to act	Date of filing of the Consent to act as Trustee(s) in Bankruptcy: []
Insolvency Practitioner’s Licence(s)	Date of filing of Affidavit exhibiting Insolvency Practitioner’s Licence(s): [] Validity of Insolvency Practitioner’s Licence(s): From [] until [] for [Name of Trustee] { <i>to be repeated where there is more than 1 Trustee involved</i> }
Debt Repayment Scheme (“DRS”)	
Debtor’s eligibility:	☐ Eligible to be considered for DRS ☐ Determined unsuitable for DRS. Date of Notice of Unsuitability: [] ☐ Ineligible to be considered for DRS because: [<i>specify reasons</i>]

I confirm that the information set out in this checklist is accurate and up to date as at the date on which this checklist is filed.

Signed:

Submitted by: [Name of counsel] for [name of Claimant]

Date: